

**THE COURT OF V ADDITIONAL CITY CIVIL AND
SESSIONS JUDGE AT BENGALURU**

Dated this the 9th day of January 2026

Present : **SRI.VEDAMOORTHY B.S.**, B.A.(L.), LL.B.,
XXXI Addl. City Civil & Sessions Judge, Bengaluru (CCH-14)
C/c V Addl. City Civil & Sessions Judge, Bengaluru (CCH-13)

Ex.No.580/2023

DECREE HOLDER : Official Liquidator of M/s
Karnataka Infrastructures
Pvt. Ltd.

V/s

JUDGMENT DEBTORS : Naresh Sachdev & others.

i.	Provision under which the application is filed	Section 47 of the Code of Civil Procedure R/w Article 136 of the Limitation Act, R/w Section 151 of the Code of the Civil Procedure.
ii.	Relief sought for	To reject the Execution Petition.
iii.	The date on which the application is filed	14.08.2023
iv.	Number of the application	I.A.No.I
v.	The date on which the objections are filed by different opponents	Not filed.
vi.	The date on which the orders were passed on the said application	09.01.2026

ORDERS ON I.A.No.I

The judgment debtor No.14 has filed I.A.No.I under Section 47 of the Code of Civil Procedure R/w Article 136 of the Limitation Act R/w Section 151 of the Code of Civil Procedure seeking an order to reject the Execution Petition as it is barred by limitation.

2. In support of I.A.No.I, the learned Counsel for judgment debtor No.14 has filed his Memorandum of Facts.

3. The decree holder has not filed objection to I.A.No.I.

4. Heard the arguments of the learned Counsel for judgment debtor No.14 on I.A.No.I. The learned Counsel for the decree holder has submitted that his arguments on I.A.No.I is may be taken as heard. The learned Counsel for judgment debtor No.14 has relied the following judgments :-

- i. The judgment of the Hon'ble High Court of Karnataka in the case between Krishna Reddy, Since deceased by his LRs V/s The

Special Additional LAO, Bangalore
Development Authority & another (ILR 2013
KAR 5353).

- ii. The judgment of the Hon'ble Supreme Court in the case between Damodaran Pillai & others V/s South Indian Bank Ltd. [(2005) 7 SCC 300].
- iii. The order of the National Company Law Tribunal, Kolkata Bench (Court-I) in the case between Machino Transport Pvt. Ltd. V/s Machino Finance Pvt. Ltd. (IAR (CA) No.213/KB/2023).
- iv. The judgment of the Hon'ble High Court of Madra in the case between S.Suresh Kumar, Proprietor of Rolex Electro Cab V/s Prakash Chand Jain, Proprietor of Sir Mahaveer Suppliers (2021 SCC OnLine Mad 17164).

5. Perused the materials available on record.

6. The following point that has been arisen for my consideration:

Whether the Execution Petition is barred by limitation ? If so, what order?

7. My answer to the above point is in the Affirmative for the following:

REASONS

8. This petition is filed by the decree holder under Order XXI Rule 11 of the Code of Civil Procedure to execute the order dated 06.07.2006 passed by the Hon'ble High Court of Karnataka in Company Application No.1268/1992 in Company Petition No.11/1986. As per Section 433 of the Companies Act, 2013, the provision of Limitation Act shall, as far as may be, apply to proceedings or appeals before the Tribunal or the Appellate Tribunal, as the case may be. The decree holder filed this petition in view of Section 364 of the Companies Act, 1956 contending that the order of the Hon'ble High Court of Karnataka may be enforced in the same manner as decree made by the civil Court in suit pending therein. Under Article 136 of the Limitation Act, the period of limitation for execution of any decree or order of any civil Court is 12 years when the decree or order become enforceable. In the present case on hand, the order under execution is enforceable on the date when the order

in Company Application No.1268/1992 in Company Petition No.11/1986 was passed on 06.07.2006. The present petition is filed on 23.02.2023. Since the present petition is not filed within 12 years from the date of the order which became enforceable, the petition is barred by limitation. In the judgments and the orders relied by the learned Counsel for judgment debtor No.14, the Hon'ble Supreme Court, Hon'ble High Court of Karnataka and the Hon'ble High Court of Madras referred above held that the period of limitation cannot be condoned in the execution proceedings. For the above reasons, I answer the above point in the Affirmative. In the result, I proceed to pass the following :

ORDERS

I.A.No.I filed by judgment debtor No.14 under Section 47 of the Code of Civil Procedure R/w Article 136 of the Limitation Act R/w Section 151 of the Code of Civil Procedure seeking is hereby allowed.

The execution petition is dismiss
as it is barred by limitation.

No order as to cost.

(Dictated to the Stenographer and typed it by her directly
in the Court Computer, corrected by me, taken its printout
and then pronounced by me in the open court today on
this the 9th day of January 2026).

(VEDAMOORTHY B.S.)

XXXI Addl. City Civil & Sessions Judge,
Bengaluru.

C/c V Addl. City Civil & Sessions Judge,
Bengaluru.